

AAMSSA Guideline

The risks of practicing Aesthetic Medicine in non-clinical setting

Issued 09 December 2019

**“All Aesthetic doctors know that science is the basis for safety.
Safety is the most important issue in our discipline”**

Dr Emanuele Bartoletti, Secretary General of the International Union of Aesthetic Medicine

In his opening address at the 22nd World Congress of Aesthetic Medicine in Warsaw Poland, September 2019, Dr Emanuele Bartoletti emphasised that safety is the No 1 concern when it comes to ethical medical care.

Although regarded as an “undesirable practice” by the HPCSA, it is not illegal in South Africa for a doctor to work in a non-clinical setting. However, AAMSSA has many concerns about doctors practicing Aesthetic Medicine in hairdressers, beauty salons and spas. The concept of combining beauty treatments with Medical Aesthetic procedures is tempting but doctors should be warned of the medical, legal and regulatory risks involved.

AAMSSA (Aesthetic and Anti-Aging Society of South Africa) is a SAMA (South African Medical Association) affiliated scientific society that is mandated to enhance education, regulation and the safe and legitimate practice of Aesthetic and Anti-Aging Medicine in South Africa.

Aesthetic Medicine is a medical discipline and it is for the safety of our patients that AAMSSA strongly encourages our doctors to work in an appropriate clinical setting.

Practicing medicine in non-clinical premises

Doctors in South Africa are regulated by the rules and ethical guidelines set by the Health Professions Act and the HPCSA (Health Professions Council of South Africa) The HPCSA Ethical Guidelines clearly state that unless it is an emergency, a medical act must be performed under proper conditions and appropriate surroundings. When Aesthetic Medical procedures are performed in a salon or spa it is on premises that are non-clinical, unregulated and potentially lacking an aseptic environment.

De-Medicalisation of Aesthetic Medicine

Internationally the UIME (International Union of Aesthetic Medicine) and locally, AAMSSA continually strive to promote the science and safety of Aesthetic Medicine. Practicing medicine in beauty salons, spas and hairdressing salons does nothing to advance the safety, credibility and standards of Aesthetic Medicine. In the Netherlands Aesthetic Medicine has recently been granted medical specialty status in order to counteract the lack of regulation in the industry.

Lack of medical supervision

Most Medical Aesthetic treatments require supervision by a medical doctor who should be physically present on the premises. Unfortunately, many doctors working in salons and spas are only there for a few hours a week, if that. Some medi-spas have a doctor who supports treatments and writes prescriptions, but who doesn't even visit the premises or assess patients. The non-medical staff are left unsupervised. A doctor's “support” or a once-a-week visit is not acceptable or safe practice.

Initial assessment by the doctor

It is imperative that a patient has a full doctor's consultation before any Medical Aesthetic treatment. A therapist working in the medical aesthetic industry should be doing so under medical supervision and only after a doctor's assessment. Supervising doctors should evaluate each patient before treatment, obtain written informed consent for every procedure, prescribe treatments and remain actively involved in the course of treatment. A doctor needs to be readily available to deal with adverse events, even if the actual procedure is delegated to a therapist or nurse.

A false sense of security

Public perception is that because the treatment is in a spa-like setting the procedures must be safe and low risk. But Medical Aesthetic treatments carry the same risk as any medical procedure. Complications from medical treatments can be very serious, and include sepsis, bleeding and haematoma formation, vascular occlusion, tissue necrosis, blindness, burns, scarring, keloid formation, nodules and granuloma formation. Any injectable treatment also has the risk of allergy, hypersensitivity reactions, anaphylactic shock and even death. Therefore, it is foolish to believe that just because the treatment is performed in a salon or spa that nothing will go wrong.

The "Pseudo-Science" of the beauty industry

Many salon treatments claim to rejuvenate the skin but aren't supported by scientific evidence or research. Phrases such as "clinically proven" or "dermatologist approved" often have little true meaning in the beauty therapy industry. While many beauty industry products are excellent, there is no law in South Africa that they have to be scientifically proven to work.

However in a medical practice doctors are regulated by the HPCSA which states that doctors are not allowed to "perform or direct procedures to be performed on a patient that are neither indicated nor scientific, or that have been shown to be ineffective, harmful or inappropriate through evidence-based review" Any deviation from this normal practice of modern medicine reduces professionalism and undermines trust in Aesthetic Medicine, by the public as well as the rest of the medical fraternity.

All services in any medical practice have to be evidence-based and proven to be effective through scientific research. This is almost impossible if mixing Aesthetic Medicine with beauty and hair care products.

Inadequately trained personnel

When working in a medical environment, aestheticians require the correct qualification and designation. Unfortunately, many beauty therapists working in a medical spa are acting outside of their scope of practice. Although a doctor might believe their therapist is capable of performing medical procedures involving needles or ablative lasers, if anything went wrong, the supervising doctor will be charged with aiding and abetting in the unauthorized practice of medicine and may be disciplined, sued, fined, lose their medical licence or even be jailed. The therapist could be criminally prosecuted. Therapists working in Aesthetic Medicine under the supervision of a doctor ideally require a Somatology degree or an Advanced Diploma in Dermal Aesthetics. It is the doctor's responsibility that staff adhere to the scope of practice guidelines for therapists, available from SAAHSP.

“Consumer Confusion”

There are concerns that if Aesthetic Medicine is practiced in a spa or salon, treatments will be marketed like a pedicure, and consumers led to believe that being injected, lasered and resurfaced needs no more thought than changing one’s nail colour. Merging medical procedures with beauty therapies results in the trivialization and commercialization of Aesthetic Medicine. Consumers become confused over the medical nature of the procedures, are not fully informed of the risks, and often don’t even know who is responsible for their procedure.

Recently there has been a significant clamp down on medi-spas in the United States. The Texas Senate Bill 2366 was passed in March 2019 requiring medical spas to post a notice informing consumers of who may perform which procedures and provide the Consumer Protection Division’s contact information to all clients.

A note on IV Nutrient therapy

The rise in popularity of IV therapy with intravenous cocktails such as energy boosters and immune boosters is a concern if performed in a non-clinical setting, without a doctor’s assessment, blood tests, prescription or supervision. This is a treatment that has a risk of anaphylaxis and death. It is well known that high dose Vitamin C, Vitamin B as well as Glutathione can cause anaphylactic shock when administered intravenously. A nurse administering IV therapy should be working under medical supervision. If you are performing IV Nutrient therapy in your practice please ensure you and your nurse have had appropriate training and that a fully kitted resuscitation trolley with adrenaline, oxygen and an AED is on site.

HPCSA guidelines regarding working in a non-clinical setting

Regarded as an “undesirable practice” by the HPCSA, doctors who choose to work in a salon or spa have to strictly comply with all laws, rules and guidelines in order to safely practice medicine in a non-clinical setting.

Listed below are some of the HPCSA regulations that apply:

1. A doctor may not share rooms with a person who is not a doctor and registered in terms of the Health Professions Act.
2. The doctors consulting room must have a separate entrance, reception and seating area, where patients are separated from the public.
3. The consulting room must be a separate walled off room for the privacy of patients, the preservation of confidentiality, and the safe keeping of records.
4. Medical hygiene must be strictly adhered to with a washing station, personal protective equipment, (such as gloves and gowns) a medical waste and sharps disposal protocol and adequate sterilization equipment.
5. There needs to be a blood-borne pathogen and exposure control plan, incidents and needle stick injury protocol, as well as resuscitation equipment such as emergency drugs, oxygen and a defibrillator.
6. The doctor may not pay or receive any commission or share any income with the salon/spa.
7. The doctor must manage their own appointments and invoicing, using their own separate payment system.
8. The doctor may not order medical grade cosmeceutical products for the salon/spa.

9. HPCSA has strict rules regarding canvassing, touting or unprofessional advertising. The salon may not advertise on behalf of the doctor or mention scheduled medicine trade names, in vitro diagnostics or Class D Medical Devices (this includes all injectables such as resorbable sutures, lipolytics, dermal fillers and botulinum toxin)
10. A doctor is not allowed to mention prices, post price lists, specials or discounts in their advertising, marketing or on social media.
11. Confidentiality is vitally important and medical records have to be kept secure. Salon and spa staff are not allowed access to the medical records without express written consent from the patient. Medical notes should be kept at the doctor's practice to protect patient's confidentiality.

If in doubt and according to the HPCSA Ethical booklet on Business Practice, a doctor can apply to the HPCSA to clear whether their practice in a Spa, Salon or Corporate Structure is ethically sound, by written application, inspection of premises, proof of training and scrutinising any contracts or agreements. This should occur before any agreements are made.

Considering the above, AAMSSA believes that the best practice model is one where beauty therapists and somatologists work within their designated scope of practice, under the supervision of a doctor, in a medical practice...and not the other way around.

References

- a) HPCSA Guidelines for good practice. Ethical booklets 1-16
- b) HPCSA Policy Document on Business Practices
- c) Texas Senate Bill TX SB2366 | 2019-2020 | 86th Legislature
- d) Aesthetic Medicine Volume 5 No 2 April/June 2019 www.aestheticmedicinejournal.org
- e) The Netherlands College of Medical Specialisms (CGS) Cosmetic Medicine Decree 10th April 2019